

#	Case Name	Tentative
50.	Hamid Roknian as Trustee of the Roknian Family Trust v. Foremost Insurance Company Grand Rapids, Michigan 2026-01554524	Defendants Foremost Insurance Company Grand Rapids, Michigan, and Farmers Insurance Group's demurrer to complaint is SUSTAINED with 10 days leave to amend as to the seventh cause of action for negligence, and otherwise OVERRULED. <u>Complaint in its entirety as alleged against Farmers.</u> Farmers demurs to the complaint in its entirety on the grounds that "Farmers Insurance Group" is "merely 'service name' for a group of insurance companies but is not a legal entity," as "explained in <i>Bell v. Farmers Ins. Exchange</i> (2001) 87 Cal.App.4th 805, 808 [<i>Bell</i>]...." (Dem. P&As at p. 6.) This argument fails because it ignores the allegations of the complaint. The complaint alleges "Farmers Insurance Group ... is a business entity engaged in the marketing, underwriting, and claims administration of insurance policies in California." (Compl. ¶ 3.) These are allegations of fact that the court must accept as true on demurrer. (See <i>Nolte v. Cedars-Sinai Medical Center</i> (2015) 236 Cal.App.4th 1401, 1406.) Farmers' reliance on <i>Bell, supra</i>, 87 Cal.App.4th at p. 808 to establish a contrary fact here is misplaced. Case law establishes legal rules and precedents, not the truth of facts in a new dispute. (See <i>Trope v. Katz</i> (1995) 11 Cal.4th 274, 284 ["'a decision is not authority for what is <i>said</i> in the opinion but only for the points <i>actually involved</i> and <i>actually decided</i>'"].) Further, <i>Bell</i> says nothing about whether "Farmers Insurance Group of Companies," as "a group of affiliated insurance companies," constitutes a legal entity or not; Farmers' legal existence was not at issue in that case. It therefore does not support defendant's position. (<i>Styne v. Stevens</i> (2001) 26 Cal.4th 42, 57-58 ["An opinion is not authority for a point not raised, considered, or resolved therein."].) <u>Sixth cause of action, violation of Bus. & Prof. Code, § 17200.</u> The complaint alleges facts sufficient to constitute the sixth cause of action for violation of Business and Professions Code section 17200 (UCL). Contrary to defendants' contentions, the claim seeks restitution and "<i>all other relief available under Business and Professions Code section 17200</i>," which includes injunctive relief. (Compl. ¶ 60; see Bus. & Prof. Code, §§ 17200, 17203.) A UCL cause of action may be predicated on an insurance bad faith claim, and a private litigant may seek both restitution and injunctive relief under such a claim. (<i>Zhang v. Superior Court</i> (2013) 57 Cal.4th 364, 381-382 &

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		fn. 10.) "Depending on proof of the nature and extent of the insurer's claims handling practices, the trial court [will] determine whether injunctive relief [is] appropriate" once the litigation reaches that point, and the failure formulate a specific injunction in the complaint does not render the claim susceptible to demurrer. (See <i>id.</i> at p. 381, fn. 10.) " '[A] demurrer tests the sufficiency of the factual allegations of the complaint rather than the relief suggested in the prayer[.]' " (<i>Ibid.</i>) <u>Seventh cause of action, negligence.</u> The complaint fails to state facts sufficient to constitute a cause of action for negligence. (See <i>Regents of University of California v. Superior Court</i> (2018) 4 Cal.5th 607, 618 [negligence elements]; see also <i>Benavides v. State Farm General Ins. Co.</i> (2006) 136 Cal.App.4th 1241, 1249-1253 (<i>Benavides</i>).) The alleged conduct at issue under this claim—i.e., "failing to conduct a reasonable investigation and ... unreasonably denying defense and coverage" within a month of receiving the claim, thereby causing plaintiff financial/economic harm (Compl. ¶¶ 15-17, 30-31, 61-64)—only gives rise to a tort claim for bad faith breach, not negligence. (See <i>Benavides</i>, at pp. 1249-1253.) Defendants shall give notice of this ruling.
51.	Mendoza v. Garden Grove Unified School District 2023-01312531	Plaintiff Juan Mendoza's motion for leave to file first amended complaint is GRANTED. (See Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) Plaintiff is ORDERED to separately file and serve the proposed first amended complaint (Johnson Decl. at Ex. 1) within five court days. The first amended complaint must be filed as a separate document to ensure it is properly indexed in the record. Plaintiff shall give notice of this ruling.
52.	Bales v. Belenardo 2021-01201005	Defendants John and Susan Belenardo's motion for attorney fees pursuant to Civil Code section 5975 is GRANTED in part. Civil Code section 5975, part of the Davis-Stirling Common Interest Development Act, provides that in an action to enforce the governing documents, the prevailing party shall be